جامعة خليفة
Khalifa University

Contract No: C302/P000/2019/ZAK

For

Nursery Services at KU Main Campus

Between

Khalifa University of Science and Technology

And

Chubby Cheeks Nursery LLC

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1. Contract Parties

This CONTRACT is made on the 23 July 2019, BETWEEN:

Khalifa University of Science and Technology

Represented by:
Dr. Arif Sultan Al Hammadi
Executive Vice President

Address:
United Arab Emirates, Abu Dhabi
P.O. Box: 127788
Tel: 02 401 8000
Fax: 02 447 2447

Hereinafter called "First Party" or "University" on one part,

AND

Chubby Cheeks Nursery LLC.
Represented by:
Ms. Roshi Tandon
Managing Director

Address:
United Arab Emirates, Dubai
P.O. Box: 234637
Tel: 02 4356598
ww.chubbycheeksnursery.com

Hereinafter called "Second Party" or "Contractor" on the other part.

2. Summary

NOW THIS CONTRACT WITNESSES AS FOLLOWS:

WHEREAS the First Party who is the owner and operator of an educational institution located in Abu Dhabi is desirous of having a Contract for "Nursery Services at KU Main Campus" by the above named Second Party who is an education firm to provide the nursery services specified in the Tender No. KU/AD/318/2018.

a) Second Party submitted proposal on 31 October 2018 against the tender no. KU/AD/323/2019 and subsequent clarification dated 11 February 2019 has awarded the subject Contract.

b) First Party requires the Services set out in Article 10 (Scope of Services) hereunder to be executed.

c) Second Party declared that it has the manpower, finance, resources, and know-how necessary to perform the Services set out in Article 10 (Scope of Services) hereto and wishes to carry out the same according to the terms and conditions hereof, for the prices set forth in Article 8 (Contract Price, Payment Terms, and Invoices).

3. Introduction

The preface above as well as supplements attached to this Contract, Second Party's proposal, any other supplements or tables the Parties agreed on, general and special conditions, the respective technical

specifications, declarations and undertakings submitted by the Second Party and accepted by the First Party, together with the documents attached hereto shall all constitute an integral part of this Contract.

4. Entire Contract

1. This Contract constitutes the entire agreement between the two Parties and shall include all the agreed terms and conditions.

2. Neither Party shall be bound or responsible of any statement, declaration, promise, solicitation or any understanding, of any kind of nature, except for the provisions of this Contract.

3. No alterations, amendments, or changes to the terms and conditions hereof shall be valid, unless affected by a "Variation Order" signed by the two parties as per Clause 20 (Variations) hereto.

5. Contractor Independence

During the Contractor performance of this Contract, it has to act as an independent Contractor and not as an agent for University. It shall have no right to present any declaration, promise or commitment of any kind on behalf of University, nor shall it bind University towards third parties by any mean.

6. Contract Validity

This Contract shall be valid with effect from the Commencement Date until the Expiry Date, as set out below:

Commencement date (Effective Date):	28 April 2019
Mobilization Completion Date:	30 November 2019
Service Operation Date:	02 January 2020 (Subject to approvals from the ministries)
Expiry Date:	01 January 2023 (3 years from Service Operation Date)

The Contract shall remain valid for a period of three (3) year from Service Operation Date unless one (1) month notice of termination is given by First Party as per Clause 15 (Termination of Contract). The Contract may be extended afterwards upon mutual agreement of both parties.

7. Main Point of Contact

1. The main contact person – for the Contractor – within the University will be the Director of Facility Management Department to whom the Contractor is directly responsible.

2. The Director of Facility Management Department may designate other persons within this department to be his representative in certain matters to do with the Contractor's responsibilities in undertaking the Contract.

8. Pricing / Rent

1. The Second Party shall pay to the First Party revenue as below:

First year:	AED 500 child/term,
Second year:	AED 120,000 (lump-sum payment)
Third year:	AED 150,000 (lump-sum payment)

2. The Second Party shall submit to First Party an approved statement of sales / revenue (third party audit report) of the Unit in Khalifa University on monthly basis and reimbursement shall be paid as per the above table.

3. The Second Party may not apply any update on items and/or prices without prior authorization by Khalifa University.

4. The Second Party shall collect the charges in advance, directly from the respective staff, student, faculty or individual consuming the services.

5. The First Party shall not be responsible for any unpaid dues owed by any staff, student, faculty or individual, with regard to the Services provided by the Second Party.

9. Performance Bond

1. The successful Tenderer shall provide at his own cost, a Performance Bond in the form of an unconditional Bank Guarantee from a UAE registered Bank in favour of Khalifa University, P.O.BOX: 127788, for AED 20,000 not later than 15 days from the date of the Contract and shall be valid from the Contract Effective Date up to 3 months after the Contract Expiry Date (i.e. 39 Months).

2. If the successful Tenderer fails to perform his obligations under the official order issued by the Khalifa University the Bank Guarantee shall be confiscated and encashed and be the acquired right of the Khalifa University without prejudice to the University right to take whatever legal action deemed necessary.

10. Scope of Services

The scope of this project is to provide typical Nursery services by the Contractor to be located in Khalifa University Abu Dhabi campus as detailed in Appendix B

11. Health & Safety

It is the responsibility of the Services Providers who wish to offer business with or for the favour of the Khalifa University of Science and Technology (KU) to provide and ensure the following mandatory prerequisites (at a minimum) are met during the operation.

1. Identify and comply with all relevant Environment, Health & Safety Standards/ Regulations and any other Legal Requirements applicable to the scope of work, activities and operations and attain valid licenses/ permits and shall maintain all relevant records but not limited to inspections, training, notices and other legal documents from all relevant authorities including, but not limited to, the AD Municipality (ADM), AD Civil Defence, Abu Dhabi Water & Electricity Authority (ADWEA), Abu Dhabi Waste Management Center (ADWMC), Environment Agency Abu Dhabi (EAD etc.) where applicable.

2. Attain an approved Environment, Health and Safety Management System (EHSMS) approved by their relevant EHSMS Sector Regulatory Authorities (SRA) and to provide the Certificates and/or Letters of evidence from their SRA to the KU confirming the state of their compliance with their SRA EHSMS requirements.

3. The Contractor shall carry out the Services in accordance with all applicable Environment, health and safety policies, guidelines, standards, procedures and requirements of all relevant Authorities (whether cited in applicable Laws, the Operating Manual or otherwise) and shall ensure that all premises and equipment is operated in a manner safe to workers, the general public, KU community and the environment within the design limits and the infrastructure.

4. Without prejudice to other provisions of this Clause the Contractor must comply with:

   a. The Environment, Health and Safety Management System of the Emirates of Abu Dhabi (Competent Authority)

   b. The Khalifa University's Environment, Health and Safety requirements and all relevant policies (ex. Environment, Health and Safety, Environmental Sustainability, Smoke-Free Environment, Occupational Health and Safety, Food Safety.

c. Abu Dhabi Emirate environmental and sustainability requirements and standards.

d. Any other requirement which the Khalifa University may notify to the Contractor from time to time.

5. All relevant employees of short term and long term contractor shall undergo KU EHS orientation and shall always carry a valid access card issued by the KU.

6. The Contractor shall ensure all electrical equipment shall be grounded with an approved three wire cord and plug. All such equipment shall undergo Portable appliance testing (PAT) and a regular preventive maintenance, as per equipment specification or manufacturer's advice. Machinery with moving parts shall be fitted with appropriate guard.

7. The KU's permit to work (PTW) system shall be followed where ever applicable.

8. If any of the documents referred to in the clause above do not comply with the law, then the Contractor must comply with the Law in performing the Services and amend the relevant document so that it complies with the law.

9. Khalifa University EHSS Department reserve ALL the rights to conduct Second Party Audit, inspections on any of the services provider's works, activities and operations as well as their facilities to ensure the compliance with all the above mentioned requirements which are mandatory and legally binding elements in the contract terms on any of Khalifa University contracted works, activities and operations.

10. The Contractor will not be entitled to any additional fee for complying with this clause.

11. Contractor to provide the following:

    a. Valid licenses from ALL relevant authorities.

    b. Valid certificates (training, medical, health insurance, vehicle permit, equipment maintenance records, etc.) from relevant authorities

    c. EHSMS Certificates/ Letters from relevant EHSMS Sector Regulatory Authorities.

    d. Copy of their approved EHSMS (Soft copy) and other International Management System Certification (ISO 14001, OHSAS 18001, etc.), if any.

12. Penalty for failure to perform

1. In case the Contractor breaks the rules of Safety, Public Health, or the rules of the related Government authorities while executing the services or Contractor's employees does not follow the general rules of the University or do some inappropriate action; the Contractor shall be notified in written letter with a cure period of 30 days for the first case and then he shall be penalized the sum of AED 3,000.00 (Three Thousand Dirhams) and if the same case repeated the Contractor shall be penalized the sum of AED 5,000.00 (Five Thousand Dirhams), besides being fully liable for any infected people who proves their claims with written official reports. The University keeps the right to terminate the Contract and liquidate the Bank Guarantee / Cheque, where there has been 5 such breaches in a rolling 3-month period.

2. The University shall not be obligated to answer any query for imposing liquidated damages.

3. The University may, without prejudice to any other method of recovery, deduct the amount of such damages from any monies which are due or may become due to the Contractor and/or may have recourse to the Bank Guarantee established by Contractor. The payment or deduction of such damages shall not relieve the Contractor from its obligation duly to perform all the other provisions of this Contract.

13. General Requirements

1. **Medical Insurance:**

   The Contractor's personnel should be covered with an insurance scheme in line with Abu Dhabi Labour Ministry regulations.

2. **General Requirements:**

   a. Contractor should not engage any subcontractor to carry out the security management. If required, should provide a formal request to the University and get prior approval.

   b. Any reports should be dealt with strict confidence and should not be shared to any third party.

   c. Contractor should be completely aware of Khalifa University EHS policies and emergency plans.

   d. Contractor should appoint staff as the contractors' focal point with authority and responsibilities over the entire contract.

   e. Contractor should provide complete staff profile for Facility Management Department (FMD) for review.

   f. Contractor should notify FMD for deploying a new staff in replacement due to staff's leave, absence, or other reasons.

14. Subcontractors

1. The Contractor agrees to provide a complete list of names and addresses of all the sub-contractors consultants and any other Contractors of services for the performance of the Contract.

2. The Contractor shall be fully responsible for all work and services performed and all material and equipment supplied by Sub Contractors and for the acts and omissions of Sub Contractors and persons either employed directly or indirectly.

15. Termination of Contract

1. Both parties reserves the right to terminate the Contract with one (1) month notice period if either of them fail to meet their respective responsibilities or services as detailed under this contract

2. KU reserve the right to terminate this Contract if the Contractor's performance, response, behaviour was found unsatisfactory or for any other reason opted by the university administration.

3. Added to the above, if the business/Services conducted by the Contractor undergoes losses for more than three (3) months, the Contractor reserves the right to terminate the contract with a one (1) month notice period.

16. Suspension of work

Khalifa University may at any time, require Contractor to suspend the performance of all and/or portion of Services relative to this Contract and Contractor shall react upon the University request.

17. Conflict of interests

Each party shall exercise reasonable care and diligence to prevent any actions or conditions which could result in a conflict with the best interests of the other Party.

18. Disputes

In cases of disputes that cannot be resolved directly by the University and Contractor, such disputes will be referred for arbitration. If still not solved then Abu Dhabi courts may be approached for settlement.

19. Notices

Any notices to be given under the terms of this Contract shall be served by sending the same by post or by leaving the same at the Administration Office of the Party on whom such notice is to be served.

20. Variations

1. Amendments to any term, condition, or provisions of this Contract can only be effected by executing a Variation Order duly approved by parties thereto. A Variation Order thus executed shall be deemed an integral part of this Contract.
2. The Contractor shall strictly comply with all terms and conditions of this Contract and shall not carry any amendments to this Contract until formally authorized by executing a Variation Order duly approved by Parties thereto.

21. Force Majeure

1. Failure or omission on the part of either Party to observe any of the terms and conditions hereinbefore stipulated shall not give rise to any claim or be deemed a breach of this Contract if such failure or omission arises from any cause reasonably beyond the control of either Party such as fire, war, and natural disasters.
2. Party claiming force majeure shall notify the other Party of such event within fifteen (15) days by email stating the estimated consequences. Onus to prove the occurrence of such events lies on the Party claiming its invocation. If the force majeure lasts more than three (3) months, the University may terminate the Contract without affecting its rights adversely under this Contract.
3. Any extension in the delivery period due to clauses of force majeure shall be by mutual agreement between Parties.

22. Assignment

The Contractor shall not assign this Contract or any part thereof of any benefit or interest herein or there under (other than by a charge in favour of the Contractor's Bankers of any monies due or to become due under this Contract) without the prior written consent of the University.

23. Insurance / Public Liability

The Contractor shall obtain and maintain the following insurance covers at all times during the period of this Contract, at the cost of the Contractor:

a. Workmen's compensation, Employers liability or similar insurance in such amounts as may be sufficient to fulfil liabilities under all applicable laws.

b. Public / third party liability such insurance shall be in the amount of not less than 1,000,000.00 AED for any one occurrence or series of occurrences arising with unlimited number of occurrences.

A copy of this insurance should be provided to Khalifa University.

24. Indemnities

1. Contractor shall notify Khalifa University of any accident occurrence likely to give rise to a claim under Khalifa University's insurances as soon as possible in any event within two (2) working days of such occurrence.

Contractor shall also submit all the claim documents to the Khalifa University as soon as possible and in any event within fifteen (15) days of such occurrence. Whenever applicable, actual settlement of a claim shall be effected by the Insurers directly to Khalifa University's account. Once the claim amount is settled by the Insurers, Khalifa University shall reimburse the Contractor the claim amount due to Contractor as the case may be.

2. In no event shall either party have any liability to the other party or its affiliates or sub-contractors for any special, indirect, exemplary, punitive or consequential loss or damage including damages or claims in the nature of lost revenue, income, profits or investment opportunities.

3. The Contractor shall release, defend, indemnify and hold harmless Khalifa University, its affiliates and its officers, employees, sub-contractors and agents from and against all claims, liabilities, damages, and expenses including, without limitation, attorney's fees and other costs of defines arising out of or incidental to this Contract for:

   a. Any and all injuries to or death or illnesses of any Contractor employees, officers, agents, sub-contractors excluding any claims made by personnel under any workers and/or personnel insurance program maintained by such Contractor, or any third parties and;

   b. Any and all damage to or loss of property of the Contractor, Contractor's employees, officers, agents, sub-contractors or any third party, except where occasioned by, or as the result of, in whole or in part, the gross negligence or wilful misconduct of a Khalifa University indemnities.

4. Without limitation to its obligations and responsibilities under this Contract, the Contractor during the whole period of the Contract from commencement until the expiry date shall at its own expense either insure or cause to be insured for liability for bodily injury by accident or disease including death resulting therefrom sustained by any agent, servant or employee of Contractor or sub-contractors arising out of and in the course of employment; and for all plant and equipment brought onto the Services site by the Contractor or sub-contractors for the use in connection with the Services to their full value against all loss or damage from whatever cause.

25. General conditions

1. The Contractor undertakes that any of their workers, users and their staff shall not steal and / or view and / or tamper with any information and / or documents, whether oral, paper and / or electronic, as well as not to leak or use elsewhere any information, whether confidential or non-confidential to any other party shall be entitled, during the course of this Agreement or after cancellation of this Agreement without notice or warning and without obligation to any compensation or obligations. In the event of violation of this clause, Contractor shall be responsible for any loss or damage to the Khalifa University as a result.

2. The Contractor is solely and fully responsible for what results from work injuries, death or damage of any kind for any of its employees or workers, whether arising from negligence or personal negligence of its agents or employees or its users while working as a responsible public responsibility for their actions towards all staff and workers.

3. The Contractor shall ensure that the all his staff assigned for the provision of services shall have valid labour permits issued by the Ministry of Labour in the UAE and shall be under the sponsorship of the Contractor.

26. Publicity

The Contractor shall not publish or make public any reference to or in connection with the Services without the prior written permission of Khalifa University.

27. Applicable Laws

1. This Contract is governed by the laws applicable in the Emirate of Abu Dhabi and the United Arab Emirates.

2. The headings in this Contract are meant for easy reference only and shall not form part hereof nor shall they have any effect on its interpretation.

3. The Contractor has to obtain all the licenses and permits required under the laws applicable to this Contract.

4. Any contradiction between the provisions hereof and any other documents, previsions hereof shall prevail. In case of any contradiction between the provisions hereof the subsequent provision shall supersede the previous one.

5. Any dispute, case or controversy arising from or in connection with this Contract or any breach hereof shall be referred to the parties for amicable settlement. If the amicable settlement is not possible, the dispute shall be referred to the court of jurisdiction for settlement.

28. Appendices

Appendix A : Price List

Appendix B : Scope of Service

Appendix C: Copy of Performance Bank Guarantee

Appendix D: Academic document

IN WITNESS whereof the Parties hereto have set their respective signatures and seals on the date first written above.

FOR AND ON BEHALF OF FIRST PARTY

Khalifa University of Science and Technology

Signature: _____

By: Dr. Arif Sultan Al Hammadi

Title: Executive Vice President

Date: 26/11/2016

جامعة خليفة
Khalifa University
Procurement & Contracts Dept.

FOR AND ON BEHALF OF SECOND PARTY

Chubby Cheeks Nursery LLC.

حضانة تشبي شيكس
ابوظبي - ا.ع.م.
Abu Dhabi
U.A.E
CHUBBY CHEEKS NURSERY

Signature: _____

By: Roshi Tandon

Title: Managing Director

Date: 10/11/19

Appendix A: Price List

The Contractor shall provide Nursery services to Khalifa University at the premises of Khalifa University in Abu Dhabi. The original Services prices are as below;

Table A: Term and Annual Fee:

Sr. no.	Age group	Term		Yearly	
		8:00 AM- 02:00PM	8:00 AM - 5:00 PM	8 AM- 2:00 PM	8 AM - 5:00 PM
1	0 - 1 years (per child)	5,700.00	6,000.00	17,000.00	18,000.00
2	1 - 2 years (per child)	5,500.00	6,000.00	15,500.00	17,000.00
3	2 – 3 years (per child)	5,500.00	6,000.00	15,500.00	17,000.00
4	3 – 4 years (per child)	5,500.00	6,000.00	15,500.00	17,000.00

Table B: Monthly, Weekly, Daily and Hourly rates:

Sr. no.	Age group	Weekly		Daily		Hourly
		8:00 AM- 02:00 PM	8:00 AM - 5:00 PM	8:00 AM- 12:30PM	8 AM - 5:00 PM	
1	0 - 1 years (per child)	700.00	800.00	200.00	300.00	80.00
2	1 - 2 years (per child)	600.00	700.00	200.00	300.00	80.00
3	2 – 3 years (per child)	600.00	700.00	100.00	200.00	70.00
4	3 – 4 years (per child)	600.00	700.00	100.00	200.00	70.00

Sr. no.	Age group	Monthly	
		8:00AM to 2:00 PM	8:00 AM to 5:00 PM
1	0 - 1 years (per child)	2,100.00	2,300.00
2	1 - 2 years (per child)	2,100.00	2,300.00
3	2 – 3 years (per child)	2,100.00	2,300.00
4	3 – 4 years (per child)	2,100.00	2,300.00

Table C: Onetime expenses:

Sr. no.	One Time Fee (Annual)	Amount
1	Registration Cost	1,000.00
2	Uniform	Inclusive
3	Activity Fee	Inclusive
	Total	**1,000.00**

Table D: Other Programs:

Sr. no.	Other Expenses	Amount
1	Summer program (Pre week)	600.00
2	Winter and spring program (Pre week)	600.00

Note:

1. All above prices are in AED and inclusive of VAT
2. Contractor not allowed charge any other fees/charges other than above mentioned.
3. No increase allowed in the fees/charges.
4. Collection of all fees/charges related to the services directly from parents is exclusive responsibility of the contractor.

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جامعة خليفة
Khalifa University

Administration, Facilities & EHSS

Scope of Services

Onsite Nursery

3. Services Locations:

The following table clarifying the onsite nursery services proposed location:

Campus	Location	Unit Registration No.	SQM
KU Main Campus	Building D, GF, D00093	UNT8302660	401 Sqm

4. KU Obligations

4.1. The Khalifa University shall provide access to a 3 phase power outlet of sufficient current capacity as requested by the service provider.

4.2. Khalifa University shall provide access to portable water.

4.3. Khalifa University obligated to provide landline telephone, FAX and Internet Access to be provided.

4.4. Khalifa University will provide all needed documents to support the contractor registrations and permits to operate in KU.

5. Contractor Obligations

5.1. Perspective contractor is obligated to provide a structured childcare and learning services for different age groups to be designed in accordance to ADEK rules and regulations.

5.2. Perspective contractor is obligated to ensure that quality and standards in service and provision are being maintained and enhanced and that areas of concern in this regard are identified and addressed.

5.3. Perspective contractor is obligated to set up the designed nursery area (401sqm) with the standard fit out and set up approved by ADEK.

5.4. Perspective contractor will be obligated to make its services available to the Users whole days of the year including summer break.

5.5. Contractor shall make sure that the designated area safe, comfortable and geared to child car.

بنك أبوظبي التجاري
ADCB

Trade Finance Operations
P.O Box 3865, Abu Dhabi, UAE
Tel 02-6741600

عمليات التمويل التجاري
ص ب 3865 – أبوظبي
دولة الإمارات العربية المتحدة
تليفون 02-6741600

REF. NO: PBOJEB1928805082
DATE : 15th October 2019

إشاراتنا رقم: PBOJEB1928805082
التاريخ : 15/أكتوبر/2019

TO: M/s. Khalifa University
Abu Dhabi,
U.A.E.

السادة/ جامعة خليفة المحترمين،،،
أبوظبي
دولة الإمارات العربية المتحدة

Performance Bond No. PBOJEB1928805082
For AED 20,000.00

خطاب حسن تنفيذ رقم: PBOJEB1928805082
بمبلغ 20,000.00 درهم إماراتي

Dear Sirs,

At the request of M/s **Chubby Cheeks Nursery (Branch)**, P O Box 234037, Dubai UAE, we **Abu Dhabi Commercial Bank PJSC**, P O Box 3865, Abu Dhabi, UAE, hereby undertake to guarantee the payment to you to the extent of **AED 20,000.00 (UAE Dirhams Twenty Thousand Only)** in respect of Contract No **C302/P0000/2019/MZK** for **Nursery Services at KU Main Campus.**

We undertake to pay you up to this amount upon receipt of your written demand stating that M/s **Chubby Cheeks Nursery (Branch)** have failed to perform and fulfill the terms and conditions of the contract

This guarantee is valid from **30th September 2019** up to **29th September 2020** and shall thereafter be automatically renewed until return back the original guarantee to us for cancelation.

Any claim under this guarantee must therefore be submitted in writing duly signed by your authorized signatories (the signature should be verified by your bankers) along with our original guarantee and amendments (if any) to us. at **Abu Dhabi Commercial Bank PJSC**, Trade Finance Operations P O. Box 3865, Abu Dhabi, UAE

This guarantee is subject to the Uniform Rules for Demand Guarantees of the International Chamber of Commerce (Publication No 758).

This guarantee is governed by the Federal laws of the UAE

Yours truly,

For and on behalf of Abu Dhabi Commercial Bank PJSC

Authorized Signatory

بعد التحية،،،

بناء على طلب السادة / **حضانة تشبي تشيكس (فرع)** - ص.ب. 234037 - دبي - الإمارات العربية المتحدة، فأننا نتعهد نحن بنك **أبوظبي التجاري**، ص.ب. 3865 - أبوظبي - الإمارات العربية المتحدة، بهذا أن نضمن سداد مبلغ لا يتجاوز **20,000.00 درهم إماراتي (فقط عشرون ألف درهم إماراتي لاغير)** وذلك عن العقد رقم **C302/P0000/2019/MZK** والخاص بـ **Nursery Services at KU Main Campus.**

أننا نتعهد بأن ندفع لكم أي مبلغ في الحدود السالفة الذكر عند طلبكم كتابة بأن السادة / **حضانة تشبي تشيكس (فرع)** ، قد فشلوا في القيام بتنفيذ التزاماتهم وفقا لنصوص وشروط العقد.

تسري هذه الكفالة من **30/سبتمبر/2019م** لغاية **29/سبتمبر/2020م** وتجدد تلقائيا حتى إعادة أصل الكفالة إلينا للإلغاء.

أي مطالبة بموجب هذا الضمان يجب تقديمها إلينا كتابة وموقعة من الشخص المفوض بالتوقيع (على أن يكون التوقيع مطابق من البنك) مع الضمان الأصلي وكل التعديلات (إذا وجدت) إلى **بنك أبوظبي التجاري**، عمليات التمويل التجاري ، ص.ب. 3865 – أبوظبي – الإمارات العربية المتحدة.

هذا الضمان يخضع للقواعد الموحدة لكفالات الضمان التابعة لغرفة التجارة الدولية (منشور رقم 758)

يخضع خطاب الضمان هذا للقوانين المعمول بها في دولة الامارات العربية المتحدة

وتفضلوا بقبول فائق الاحترام والتقدير،،،

عن بنك أبوظبي التجاري ش.م.ع.

التوقيع المعتمد

عمليات التمويل التجاري
بنك أبوظبي التجاري
ADCB
TRADE FINANCE OPERATIONS

Original Received by.
Name – Syed Habeeb
Mobile –
Sign
20/10/2019

جامعة خليفة
Khalifa University
20 OCT 2019
Signature:
RECEIVED
Finance Dept.

Job Descriptions

- **Nursery Director**

Qualifications:

Our Nursery Director is approved from Ministry of Education with relevant degree and pursuing Cache 5 course with the following knowledge and skills:

1. Knowledge, understanding and practical experience of Day Care for young children
2. Knowledge and practical understanding of child development and parenting
3. Knowledge and understanding of legislation and regulations relating to day care for young children and the inspections process for approval of day care settings
4. Knowledge and ability to create and implement policies and procedures consistent with legislation, regulations and local requirements
5. Able to work independently and to manage own time efficiently
6. Experience of managing, supervision and appraisal of staff
7. Ability to develop an effective team
8. Warm and caring personality – friendly and approachable to families
9. Ability to create and implement basic systems for child records and financial records
10. Ability to communicate effectively with staff at all levels
11. Commitment to the principle that families 'know best' about their own needs
12. Commitment to equal opportunities for all children and families

Nursery Director Job Description

The Nursery Director takes responsibility for smooth and effective day to day operation of the nursery. She reports to the MD and work with the Primary Care Providers, Care Providers, Nurse, Admissions Manager and parents. The following job description is an indication of the role; management may also direct her to complete any reasonable task in line with the position.

Main Duties and Responsibilities

1. To be responsible for the day-to-day running.
2. To create a welcoming and family friendly environment.
3. To take part in recruitment and to support a team of staff to meet statutory ratios and include contingency staffing where appropriate, including induction.

4. To provide a child-centered environment where children are cared for in a safe, caring and stimulating way that ensures their individual needs are met within a group setting.
5. To ensure the national standards for the registration of childcare are maintained at all times.
6. To implement the Children's Nursery's Equal Opportunities Policy in all aspects of the Nursery and other childcare services.
7. To take responsibility for quality assurance and compliance with all applicable legislation, including Health and Safety, within the Nursery environment.
8. To work in partnership with Ministry of Education Other Children's centers.
9. To establish and maintain effective working relationships with partner agencies providing services within the Nursery.
10. To develop and review applicable policies and procedures and then to ensure that nursery operates within the framework set.
11. To establish and deliver an effective curriculum which includes assessment, planning and evaluation.
12. To ensure the implementation of the EYFS curriculum for all children 3-6 years.
13. To develop and maintain procedures for regular review and assessment of each child's progress in partnership with parents.
14. To implement and manage an effective parent liaison program, ensuring regular communication and interaction with parents.
15. To receive and deal with complaints positively in accordance with procedures.
16. To work as a senior member of team and to promote all activities being provided by the Nursery.
17. To be responsible for marketing the Nursery through the development and implementation of marketing strategy.
18. To attend regular supervision team meetings, senior center management meetings and training as required.
19. To participate in the appraisal process.
20. To ensure that the register and up to date records of all children are maintained using the Day Care provision and to give regular feedback to parents about their child's development and progress.

Managing Resources

1. To achieve the targets set for occupancy levels by managing capacity, reviewing numbers of children attending and following up enquiries promptly to ensure maximum capacity levels are maintained at all times.
2. To manage an allocated budget in accordance with agreed procedures.
3. To ensure an effective stock control system is established and a register of assets is maintained.

Managing People
1. To assist in recruitment and to support a staff team with the appropriate skills, qualifications, experience and qualities, ensuring the nursery is staffed to the required levels at all times, including induction
2. To implement a program of supervision and performance management and an appraisal system.
3. To agree developmental plans for each member of staff which support the further development of the Nursery.
4. To manage staff sickness and absence in accordance with procedures
5. Provide training for all the staff, including new starters alongside the Supervisor.

Managing Quality
1. To be responsible for establishing and maintaining a safe and acceptable standard of practice that meets MOE criteria.
2. To ensure quality standards, including the implementation of all relevant legislation, policies and procedures.
3. To equip the nursery with suitable materials of a high quality which enhance the environment.
4. Risk assessment, evacuation plan and fire drill.

Managing Information
1. To produce reports and statistical information as required, maintaining high standards of accuracy and confidentiality in record-keeping.
2. To participate in the evaluation of the services offered at the nursery.
3. To promote, attend and represent the nursery at appropriate events, conferences, seminars and training.
4. To undertake any other task requested which is commensurate with this role and responsibility.

- **Primary Care Providers**

The Primary Care Provider reports to the Nursery Director and works with nurse, care providers and Admissions Manager to create a safe and happy

early learning environment. The Primary Care Provider instructs and supervises her class in social and development activities. The following job description is an indication of the role; management may also direct you to complete any reasonable task in line with the position.

Primary Care Provider Job Description

Main duties to include:

Teaching and Learning

- Teaching and assessing children in her own class.
- Working with the nursery manager and teachers to develop the academic planner and curriculum.
- Working with the nurse to assess the development of the children.
- Ensuring that the resources in each classroom are age appropriate and safe.
- Creating a stimulating learning environment.
- Implementing the EYFS curriculum in all areas.
- Reflect on her own practice.
- Addressing the needs of children with different levels and types of ability.
- Managing children's behavior and routines in line with the nursery's policies and procedures
- Working within nursery's health and safety guidelines to ensure all children are safe

Planning and Assessment

- All planning should support children's learning and development within EYFS framework
- Weekly activities should be planned based around the theme in the academic planner.
- Continually assess the progress of children in her care and adapt her teaching to suit the emerging needs of her class.
- Completing termly formal assessment of children.

Record keeping

- Take daily registers to record attendance in her class.

- Inform the administrative officer or manager of repeated absences to be followed up with phone calls home.
- Record the progress of her class.

Parent – teacher relationship

- Building strong relationships with parents and guardians.
- Meeting with parents to discuss the progress of children in the nursery.
- Providing termly assessments to parents.
- Provide information for the newsletter.

Leadership

- Working with the Nursery Director to identify strengths and weaknesses in the nursery and taking action to make improvements.
- Working with the Nursery Director to arrange training and development for the staff.
- Offering guidance and support to the teaching team.
- Motivate the staff.

- **Care Providers**

Care Providers report directly to their Primary Care Providers. The main role of the Care Provider is to provide support to the Children, Primary Care Provider and Curriculum on a day to day basis as required by the Primary Care Provider they are assigned to. Care Providers is also responsible for the daily set up and preparation of classroom activities and overseeing the daily duties of the classroom assistants.

Main duties to include:

Teaching and learning:

- Assist the primary care provider in all activities and duties in the class.
- Assisting in the support and supervision of all children in the nursery.
- Treating all children with love, understanding, respect, and dignity
- Empowering children to feel responsible and to take action
- Supporting children with all of their toileting needs
- Planning activities for children, such as storytelling or art projects.
- Instructing and supervising children in social and developmental activities.
- Helping to prepare the snacks, feed and change them

- Providing one-on-one attention when needed.
- Organizing the classroom and plan intellectual activities for children, as per the primary care provider's requests.
- Maintaining constant awareness of the needs of the children.
- Keeping classrooms and common areas organized and tidy at all times. Making sure primary care provider will be informed of any broken and unsafe toys and then removed immediately.
- Working within the setting's child protection procedures.
- Helping get dressed and changing their diapers when needed.
- Should be prepared to take on the role of primary care provider when needed.
- Working closely with children that have some developmental disabilities.
- Ensure child is collected by someone known to Nursery

Team work:

- Comply with Nursery's Policies and Procedures at all times
- Participating and contributing to monthly staff meetings
- Participate in all training to improve skills and knowledge and to develop a positive attitude that enhances the practice
- Liaise with teachers to provide stimulating environment for the children.
- Establish a good working relationship with other assistant teachers.
- Ensuring observations are shared with the Primary Care Provider

- **Nurse**

The nurse takes responsibility for the health and safety of children and staff. She reports to the nursery manager and work with the primary care providers, care providers and Admissions Manager to ensure that the hygiene policy, health and safety policy and sickness policies are followed. The Nurse will maintain health records and ensure that patient confidentiality is respected.

Main duties to include:

Child Development:

- Tracking the physical development of the children by taking the weight and height of each child at regular intervals and recording the results.

- Work with the contracted doctor to screen hearing, vision, posture, body mass index etc and take action to resolve any deviation from normal growth and development with management and parents.
- Informing the management if developmental delays are suspected.
- Looks after the physical and emotional safety of the children.

Infection control:

- Monitoring the temperature of children who appear unwell and keeping a record.
- Observing children in the clinic if they fall ill during nursery hours and informing the nursery management.
- Ensuring that staff and children who have been unwell stay out of the nursery for the appropriate exclusion period for their condition.
- Monitors the immunization records of children.

Health and safety

- Providing first aid to children and staff.
- Liaise with parents, management and teachers as appropriate to manage the care of chronic health conditions of the children.
- Develops health care plan for children with chronic conditions.
- Record any medicines given to children and ensure that permission forms are signed by the parent.
- Ensuring that medications are administered on time.
- Ensuring medications are correctly stored and out of the reach of children.
- Monitor health, hygiene and safety risks in the nursery and report to management.
- Ensure that the clinic is clean and equipment is sterilized as appropriate.
- Promotes health in the nursery.
- Evaluates the health, hygiene and safety policies of the nursery along with the management team and actively promotes them to the staff.
- Keep the medical files updated.
- Checking safety of the toys and class activities.

Team work:

- Liaise with doctors, nursery director and parents.

- Establish a good working relationship with the contracted doctor.
- Establish a good working relationship with all staff and act as a role model for good health and hygienic working practice.

PROFESSIONAL DEVELOPMENT PLAN

At Chubby Cheeks Nursery, we believe that it is very important to regularly update our teachers' continuous professional development. We ensure that the team continuously refresh their skills in order to maintain outstanding practice.

Our staff's training needs are addressed and identified using a range of tools. We have peer to peer observations to highlight weaknesses and areas for further training. We also have regular supervisions to get a clearer picture of our team's training requirements.

Training Frequency and Duration

Continuous Professional Development sessions are usually carried out during 2 days in the first week of each term and during mid-term breaks.

Our training schedule is as follows:

TERMS	SCHEDULE
September 2019	September 2019 Week 1 November 2019 Week 1
January 2020	January 2020 Week 1 February 2020 Week 3
April 2020	April 2020 Week 1 May 2020 Week 3

The sessions are carried out during 2 days each week with an average of 5 hours per day.
We ensure that our staff gets an average of 20 hours of continuous professional development training per term.

Suppliers for Continuous Professional Development

In order to ensure the highest level of training for our staff, we have partnered with Arabian Child, TAITO, EYES, AIM Middle East, Civil Defence, Boecker and Kids Initiative.

List of Continuous Professional Development Courses

CPD courses are chosen, customized and conducted according to our team's requirements and needs. Below is a list of topics included but not limited to our training program.

The Early Years Foundation (EYFS)
Classroom Management
Continuous Provision
The Creative Classroom
The Curious Classroom
Developing Children's Numeracy Skills
Developing Children's Thinking Skills
Developing Role Play
Encouraging Speaking and Listening
Effective Use of Sand and Water Trays
Embedding Physical Development into Everyday Practice
Preparing for Emergency
Enabling Environments
Encouraging Sustained Shared Thinking
Health and Safety in Early Years
Inspiring Active Learning
Learning Journals
Learning through Play
Making the most of your Circle Time
Making the most of your Outdoor Area
Managing Difficult Conversations
Managing Facilities and Resources in Early Years Setting
Mark Making
Maths beyond the Carpet
Messy Play
Movement to promote Writing Readiness
Observations, Assessment and Planning
Paediatric First Aid

Positive Communication within the Classroom
Promoting Positive Behaviour
Story Sacks
Supporting Bilingualism in Early Years
Team Building and Motivational Skills
Policies and Procedures
Working in Partnership with Parents
Working with the Under 2's
Child Protection

Professional Development Audit Form

An example of our professional development audit form below:

CHUBBY CHEEKS NURSERY

PROFESSIONAL DEVELOPMENT AUDIT

Name:

Term:

Date:

AREAS	OBSERVATIONS	COMMENTS
Relationships with children	• Do children enjoy your company? • Are you able to form relationships with children of different ages? • Do you understand children's behaviour and how it links to their age and stage of development? • Do you have knowledge about why children may not show typical behavior? • Do you have a range of strategies and approaches to support a child with behavioural problems?	
Relationships with parents	• Do you feel confident talking to all parents? • Are you able to maintain a friendly but professional manner?	
Relationships with colleagues	• Do others enjoy working with you? • Are you considered part of the team? • Are you able to ask questions or put forward your point of view appropriately?	
Supporting children's play	• Do you have the knowledge to know what play opportunities are suitable for different age groups? • Are you confident about supporting play in different age groups? • Are you able to plan for different children and maintain a play environment?	

Supporting children's communication and language	• Do you listen carefully and follow up on their thoughts and ideas? • Are you able to interact sensitively with children in ways that allow them to express themselves? • Do you understand how children develop language and the factors that might influence the development of language?	
Supporting children's physical development and health	• Do you have the knowledge you need to support children's physical development at different ages? • Do you know how to plan play environments that support children's physical development? • Are you able to provide opportunities for physical development at different ages? • Do you know about factors that may influence physical development? • How sensitively do you support physical care routines? • Do you understand what it means to safeguard children?	
Supporting the early years curriculum	• Are you confident you can assess children accurately in each of the areas of the EYFS framework? • Do you understand observation methods? • Are you able to plan effectively in each of the areas of learning? • Do you base your planning on observation? • Are you confident in the use of learning journals to record progress?	

My Stengths and Weaknesses:
Targets for Next Term:

Teachers Observation -

Staff Appraisals are valuable sources of feedback and can be used for professional growth.

Performance Evaluation for the .....

Name :	
Teacher Assistants :	
Branch :	
Date :	

Tick mark appropriate:

Sr.	Criteria	Yes	No	Remarks
	Welcoming Time/Free Play			
1	Arrived on time			
2	Classroom is organized and table top activities set up			
3	Risk Assessment of the classroom is done			
4	Classroom environment is safe for the children			
5	Stands at door and greets parents			
6	Meets children in a warm and affectionate way			
7	Children are happy and engaged in activities			
8	Activities set up are age appropriate for children's learning			
9	Activities include a balance of child initiated and adult led play opportunities (Please tick) Physical Play Creative Play Sensory Play Imaginative Play Writing			
10	TAs are performing their assigned duties efficiently			
11	Transition to next activity is good: (Example: Clean up song and encouraging children to clean up)			
	Circle Time			
1	Children are sitting in an organized fashion.			
2	Children are safe during the activity			
3	Interacts with children well and gives group as well as individual attention			
4	Children are engaged and responding			

Teachers Observation -

5	One-to-one interaction is encouraged			
6	Communicates clearly using age appropriate speech			
7	Makes use of flash cards and other teaching materials and aid			
8	Uses strategies to plan activities which encourage: Speaking and listening Sustained shared thinking Reading			
9	Promotes speech, language and communication of children			
10	Multiple ways to teach are used including rhymes, topic of the day, alphabets, numbers etc			
11	TAs are involved during the session			
12	Transition to the next activity is good			
	Learning Goals			
1	Activity conducted is safe for children			
2	Children are happy and engaged			
3	Activity supports age appropriate learning and development			
4	Activity supports fine motor skills			
5	Activities supports literacy and numeracy development			
6	Teacher Assistants are performing their assigned duties efficiently			
7	Transition to the next activity is good			
	Snack Time			
1	Children are taken to wash hands before and after meal			
2	Assistance is offered to children			
3	Independence is encouraged			
4	Children are happy and engaged			
5	Clean up is done after snack time is finished			
6	Teacher Assistants are performing their assigned duties efficiently			
7	Transition to the next activity is good			
	Special Activity			
1	Activity conducted is safe for children			
2	Children are happy and engaged			
3	Activity promotes and supports different areas of development			
4	Teacher Assistants are performing their assigned duties efficiently			
5	Transition to the next activity is good			
	Play Area – Indoor/Outdoor			

Teachers Observation -

1	Activity conducted is safe for children			
2	Children are happy and engaged			
3	Leads a planned play opportunity			
4	Teachers and assistants are involved with the children			
5	Promotes Physical Development			
6	Transition to the next activity is good			
	Arts and Crafts			
1	Activity conducted is safe for children			
2	Children are happy and engaged			
3	Activity promotes and supports creative development			
4	Activity is well explained to children so they are aware of what needs to be done			
5	Transition to the next activity is good			
	General			
1	Friendly, warm and affectionate			
2	Uses modulated, appropriate voice			
3	Reinforces positive behavior			
4	Uses strategies to support children to manage their own behaviour			
5	Is prepared for the day's activities in advance			
6	Is a team player – supports and helps Teaching Assistants			
7	Handles transitions well			
8	Listens and responds well to parents			
9	Is tactful with negative information			
10	Plans activities that promotes social and emotional well being			
11	Plans opportunities which supports children's understanding of the world			
	Teaching Assistants Role			
1	Teacher Assistants are actively assisting in all activities			
2	They are aware of their roles and responsibilities			
3	Teamwork of the class is positive.			
	Half Day Schedule			
1	Activity conducted is safe for children			
2	Children are happy and engaged			
3	Activity promotes active learning and development			
4	Child-teacher ratio is maintained			

Teachers Observation -

5	Transition to the next activity is good			
	Afternoon Class			
1	Teacher is prepared in advance for the class			
2	Table top activities are set up to welcome the children			
3	Teacher and TAs are actively performing			
4	Circle time is fun, engaging and according to curriculum			
5	Activities conducted are safe for the children			
6	Timetable is being followed and activities done accordingly			
7	Children are happy and engaged			

Further Comments

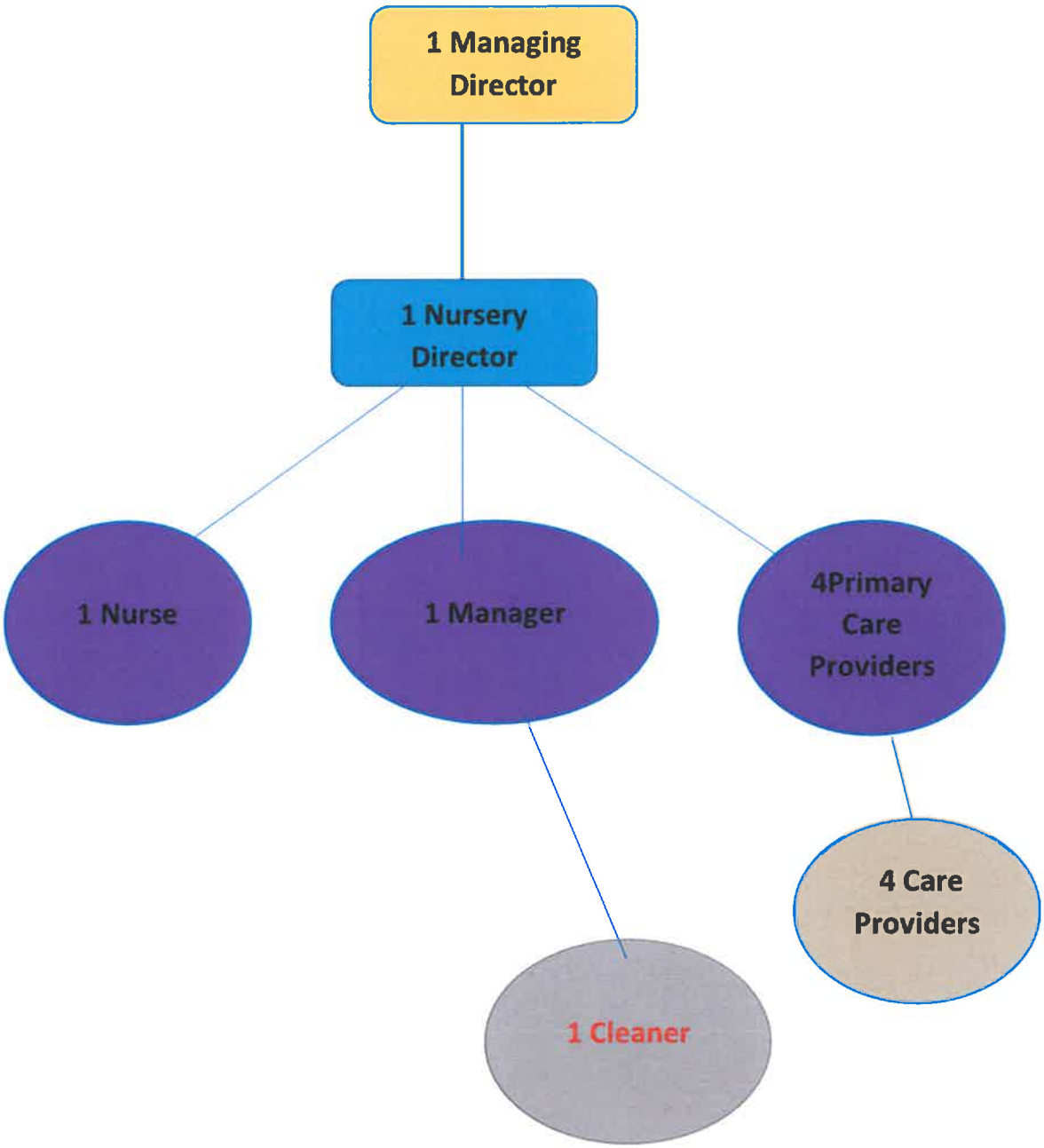
Please write any further comments during your observation that requires attention.

Training Needs

Please write the training needs of the staff member and areas of improvement.

Evaluation done By –

Staffing Structure



CHUBBY CHEEKS NURSERY

Babies

Timing	Activities
8:00am	Free Play
8:30am	Islamic Prayer & UAE National Anthem
8:45am	Healthy Breakfast
9:30am	English Songs and Sensory Play
9:45 am	Baby Massage
10:00am	Play Area / Library
10:30am	Arabic Songs
10:45	Sensory Play
11:00am	Special activities / Arts and Crafts
11:30am	Healthy Lunch
12:00am	Nap Time / Play Area & Games (for those who don't nap)
1:00pm	Wakeup-Shakeup, Dressup-Freshup!
2:00pm	Sing-Dance
2:15pm	Role Play/Sensory
2:30pm	Arts and Crafts
3:00pm	Munch Crunch
3:30pm	Play Area
4:00pm	Baby Massage
4:30pm	Free Play
5:00pm	Good Bye!

CHUBBY CHEEKS NURSERY

Toddlers

Timing	Activities
7:00am	Free Play
7:30am	Islamic Prayer & UAE National Anthem
7:45am	Healthy Breakfast
8:30am	English Circle Time
8:45am	Toddlers Exercises
9:00am	Flash Cards / Mark Making / Painting
9:30am	Play Area / Library / STEM room
10:00am	Special curriculum-based activities
10:30am	Arabic Songs
10:45	Sensory Play
11:00am	Lunch Time
11:30am	Arts and Crafts
12:00am	Nap Time / Play Area & Games (for those who don't nap)
1:00pm	Wakeup-Shakeup, Dressup-Freshup!
2:00pm	Sing-Dance
2:15pm	Mark Making
2:30pm	Arts and Crafts
3:00pm	Munch Crunch
3:30pm	Play Area / Library / STEM room
4:00pm	Exercise
4:30pm	Free Play
5:00pm	Good Bye!

CHUBBY CHEEKS NURSERY

Preschool

Timing	Activities
8:00am	Free Play
8:30am	Islamic Prayer & UAE National Anthem
8:45am	Healthy Breakfast
9:30am	English Circle Time
10:00am	Literacy Numeracy
10:30am	Special curriculum-based activities
11:00am	Play Area / Library / STEM room
11:30am	Arabic Circle Time Literacy Num
12:00am	Lunch Time
12:30am	Arts and Crafts
1:00pm	Nap Time / Play Area & Games (for those who don't nap)
2:00pm	Wakeup-Shakeup, Dressup-Freshup!
2:30pm	Sing-Dance
3:00pm	Munch-Crunch
3:30pm	Learning Goals
4:00pm	Arts and Crafts
4:30pm	Free Play
5:00pm	Good Bye!

CHUBBY CHEEKS NURSERY

Foundation Stage

Timing	Activities
8:00am	Free Play
8:30am	Islamic Prayer & UAE National Anthem
8:45am	Healthy Breakfast
9:30am	English Circle Time
10:00am	Literacy Numeracy
10:30am	Special curriculum-based activities
11:00am	Arabic/Islamic Circle Time
11:30am	Play Area / Library / STEM room
12:00am	Lunch Time
12:30am	Arts and Crafts
1:00pm	Nap Time / Play Area & Games (for those who don't nap)
2:00pm	Wakeup-Shakeup, Dressup-Freshup!
2:30pm	Sing-Dance
3:00pm	Munch-Crunch
3:30pm	Learning Goals
4:00pm	Arts and Crafts
4:30pm	Free Play
5:00pm	Good Bye!

مركز أبوظبي للأعمال
Abu Dhabi Business Center

عام زايد
YEAR OF ZAYED

دائرة التنمية الاقتصادية
DEPARTMENT OF ECONOMIC DEVELOPMENT

Commercial License

رخصة تجارية

License No	:	CN-1844363	:	رقم الرخصة
ADCCI No	:	330395	:	عضوية الغرفة
Establishment Card MOHRE	:	844349	:	وزارة الموارد البشرية والتوطين بطاقة المنشأة
Establishment Card GDRFA	:		:	الادارة العامة للإقامة وشؤون الأجانب - بطاقة المنشأة
Legal Form	: Establishment		: مؤسسة فردية	الشكل القانوني
			: حضانة تشبي تشيكس	الإسم التجاري
Trade Name	: Chubby Cheeks Nursery			
Establishment Date	:	13/11/2014	:	تاريخ تاسيس المنشأة
Issue Date	:	03/07/2019	:	تاريخ الإصدار
Expiry Date	:	02/07/2020	:	تاريخ الإنتهاء

الصفة Role	الجنسية Nationality	المالك / الشركاء Owners / Partners	الرقم No.
مالك Owner	الإمارات العربية المتحدة United Arab Emirates	احمد اسحاق خدابخش اسماعيل المازمي AHMED ISHAQ KHUDABAKHSH ISMAIL ALMAAZMI	41543954

Commercial Activities - Nurseries	:		:	الأنشطة التجارية - دور الحضانة
Address	:	: أبوظبي, شارع المرور - شرق ٣٨_١ - ق ٨٣, مالك: خادم غيث محمد القبيسي		العنوان

(تم تحصيل رسوم خدمات الدفاع المدني)

وثيقة معتمدة ومصدرة بدون توقيع او ختم من دائرة التنمية الاقتصادية - أبوظبي. للتحقق من صحة البيانات الواردة في الرخصة يرجاء زيارة الموقع http://www.ded.abudhabi.ae

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LLOYD'S REGISTER QUALITY ASSURANCE ISO9001

غرفة أبوظبي
ABU DHABI CHAMBER

وزارة الداخلية
القيادة العامة للدفاع المدني
MINISTRY OF INTERIOR
GEN. COMMAND OF CIVIL DEFENSE